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Case Name: *Wells Fargo Bank, N.A. v. Phat Tran*

Case No.: 25CV477490

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Wells Fargo Bank, N.A. (“Plaintiff”) moves under Code of Civil Procedure Sections 2033.010, 2033.020, 2033.250, 2033.280, and 2033.430 to deem the truth of all matters specified in the Requests for Admissions, Set One, served on December 4, 2025, to be admitted by Defendant Phat Tran (“Defendant”). Notice of Motion (the “Motion”) at 1:21-24 (filed: Feb. 5, 2026).

The Motion came on for hearing on July 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Plaintiff served the Requests for Admissions, Set One, on Defendant on December 4, 2025. Declaration of attorney Pearse F. Early In Support of Motion (“Early Decl.”) at ¶ 1 & Exhibit A thereto.

Defendant never responded to the Requests for Admissions, Set One, despite his obligation to respond under Code of Civil Procedure Section 2033.240. Early Decl. at ¶ 2.

Because Defendant failed to respond, Plaintiff now moves for an Order under Code of Civil Procedure Section 2033.280 deeming admitted by Defendant the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One. C.C.P. 2033.280 (b). Plaintiff’s Memorandum of Points & Authorities in Support of Motion at 1:23-2:7.

The Motion is well supported by the law, well supported by the facts set forth in the Early Declaration, and reasonable in all respects.

Moreover, Defendant has failed to oppose the Motion, which the Court views as Defendant conceding the Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).)

Accordingly, the Court **GRANTS** the Motion in all respects. Specifically, it is hereby **ORDERED that the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One, served on Defendant on December 4, 2025, is deemed admitted by Defendant Phat Tran.**

SO ORDERED.

Date: July 10, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

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